

# FEDERAL MARITIME COMMISSION

## Office of Administrative Law Judges

PELTON INTERACTIVE, INC., *Complainant*

v.

FLEXPORT INTERNATIONAL LLC, *Respondent*.

**DOCKET NO. 24-19**

Served: May 15, 2025

**ORDER OF:** Linda S. Harris CROVELLA, *Administrative Law Judge*.

### ORDER ON PENDING MOTIONS

#### I. Pending Motions

There are a number of pending motions in this proceeding which have been filed by Complainant Peloton Interactive, Inc. (“Peloton” or “Complainant”) and Flexport International LLC (“Flexport” or “Respondent”). While the motions to compel were decided in part during a conference and a memorandum order issued on March 26, 2025, and the parties resolved some of the issues raised in their respective motions since that time, there are pending discovery requests that have not been withdrawn or resolved. The motions to compel, as well as a more recently filed motion to dismiss and for sanctions, motion for confidentiality, and motion to extend the schedule are addressed below.

#### A. Motions to Compel

On March 25, 2025, a video status conference was held to discuss several pending motions, including motions to compel filed by both parties. On March 26, 2025, a memorandum order issued, memorializing the decisions made by the undersigned at the conference; not all of either party’s motion to compel was discussed or decided during the video conference. Based on the arguments of the parties presented at the status conference and in their respective motions and responses, Flexport was ordered to provide the communications between it and contractors such as motor carriers and railroads, as well as marine terminal operators and ocean carriers, regarding the movement of Peloton containers/shipments for which invoices issued beginning in May 2021. Respondent was also ordered to state in writing whether it has or had any policies or procedures in effect from January 2021 to December 31, 2022, relating to the assessment of detention and demurrage charges, or free-time for containers and/or chassis, including whether extensions of free-time would be provided under certain circumstances, other than its Rules Tariff. Respondent was also ordered to identify the applicable sections of its Rules Tariff that address detention, demurrage, provision of chassis, free-time, and provisions for extending free-time or obtaining a waiver of detention or demurrage charges, if any. Memorandum Order at 1-2.

Also pursuant to the status conference, Complainant was ordered to provide a supplemental response to Respondent’s interrogatories with references to Bates numbers for

documents responsive to the interrogatories (referred to as “Confidential Peloton Production Log with Bates” in Complainant’s January 10, 2025, filing). Memorandum Order at 2.

The parties were further ordered to file a Joint Status Report (“JSR”) by April 4, 2025, “stating whether any of the items sought through their motions to compel have been resolved, are withdrawn, or are modified based on the...conference, and based on the rulings....” Memorandum Order at 2. Rather than file a “joint” status report, the parties filed a document where they each provided what they refer to as their own status report, but which amount to supplemental arguments for the remaining items for which they each move to compel production.

On April 22, 2025, an Order on Complainant’s Third Motion to Extend Schedule issued (“3<sup>rd</sup> MTE”), denying the motion to extend the schedule for lack of good cause and advising Respondent that raising new issues while failing to address the motion was not an acceptable response. Complainant sought the extension because it expected it would receive a substantial number of documents pursuant to the Memorandum Order. Accordingly, while the motion was denied as speculative, Flexport was again ordered “to produce the communications between it and various entities regarding the movement of Peloton containers/shipments for which invoices issued beginning in May 2021,” by April 25, 2025. 3<sup>rd</sup> MTE at 2, Memorandum Order at 1. The parties were cautioned that any items specified in the Memorandum Order that were not produced by April 25, 2025, could result in discovery sanctions. MTE at 2. Neither party has notified the undersigned that it received responses to the outstanding discovery requests identified below.

### **1. Peloton’s Outstanding Discovery requests**

Peloton asserts that only three (3) requests for production (“RFP”) remain outstanding of the 27 items which it sought to have compelled. JSR at 1. Moreover, Peloton asserts in the JSR that it “will file a status report indicating that [the three remaining requests] are no longer an issue in Peloton’s Motion to Compel.” JSR at 5, 6. Since no further status report has been received, it appears that all three remain outstanding, and these have been identified as RFP 4, 5, and 13.

RFP 4 seeks documents and records regarding the movement of Peloton containers/shipments for which invoices issued from May 2021 through December 2022 (as narrowed by the video conference and Memorandum Order). Peloton maintains that deposition testimony and records indicate that there are more communications than Flexport has provided, including internal notes from the Flexport Platform. JSR at 3. In addition, Peloton states that Flexport acknowledged on March 25, 2025, that it inadvertently has not produced all house bills of lading, delivery orders, or negotiated rate agreements. JSR at 4. Finally, Peloton asserts that deposition testimony revealed that there is “[d]ocumentation of changes to detention and demurrage charges on Flexport’s platform.” *Id.* at 4 (emphasis omitted).

Flexport initially objected to producing any documents in response to RFP 4 because it was “not calculated to seek relevant evidence.” Exhibit 1 to Peloton’s Motion to Compel at 11. Discovery is permitted “regarding any nonprivileged matter that is relevant to any party’s claim or defense.” 46 C.F.R. § 502.141(e)(1). Subsequently, in its response to the motion to compel, Flexport maintained that it had “produced all documents relating to every shipment for which charges were assessed as identified in Peloton’s Exhibit A.” Opposition to Peloton’s MTC at 7

(emphasis in original). At the March 25, 2025 conference, Peloton maintained that it had not received all the communications, invoices, and bills of lading for the shipments invoiced between May 2021 and October 2021, and the undersigned found that the information sought was relevant and should be produced. To the extent that it was not clear, the records, including bills of lading, invoices, and the communications between Flexport and the contractors, marine terminals, and ocean carriers, as well as the internal communications regarding Peloton's containers or shipments, are relevant to Peloton's claims and are compelled. To the extent that they have not been provided, Flexport is **ORDERED** to produce any remaining records by May 20, 2025, and to then state in writing that there are no further records responsive to the request.

RFP 5 seeks that Flexport be compelled to "[p]roduce all Documents and data concerning real time tracking information Flexport makes available to customers through online platforms." This request refers to what is called the "Peloton Events Download" for which Flexport produced shipment information from October 2021 through December 2022. At the conference and in the Memorandum Order, Flexport was ordered to supplement its production of shipment tracking data if invoices for those shipments issued in or after May 2021 through December 2022. While shipments may have occurred prior to the three-year statute of limitations for reparations, invoices that for those shipments may be when Peloton was put on notice of alleged Shipping Act violations. Accordingly, to the extent it has not supplemented its response to RFP 5, Flexport is **ORDERED** to produce any remaining records for the period from May 2021 through December 2022 by May 20, 2025.

RFP 13 requests documents regarding Flexport's policies, procedures, and training regarding detention and demurrage. If Flexport has policies or procedures and/or trains employees on how or when to assess detention and demurrage charges, or what factors go into making that assessment, that information could lead to admissible evidence. Accordingly, if Flexport has or had any policies, procedures, or training programs related to demurrage and detention in effect from May 2021 through December 2022, it is **ORDERED** to produce them by May 20, 2025.

## **2. Flexport's Outstanding Discovery Requests**

Flexport asserts in its portion of the JSR that it still seeks to have the following six interrogatories compelled: Nos. 12, 13, 14, 15, 18, and 24. The JSR indicates that the parties have discussed supplementing responses to the interrogatories, but Flexport has not informed the undersigned that it has received those supplemental responses from Peloton. Flexport also contends that Peloton should be required to withdraw its boilerplate objections.

Interrogatories 12 – 15 and 18 seek information regarding the Peloton shipments and specifically, the cause of alleged delays relating to the retrieval and return of the containers and equipment (Nos. 12 and 14); how Flexport caused or contributed to the underlying transportation delays (No. 13); the dates on which "Peloton advised Flexport that each container was available to be returned" (No. 15); and "how many days the container was at Peloton's facility before [it] advised Flexport that same could be returned [and] for each such detention charge, state...the factual bases as to how the delay could be the result of Flexport's actions or inactions" (No. 18). Ex. B to Flexport's Motion to Compel at 8-9, 11.

Peloton objects to all five of the above interrogatories, stating in response to each:

Peloton objects to this Interrogatory on the grounds that it is overly broad, compound, unduly burdensome, harassing, and not reasonably calculated to lead to the discovery of admissible evidence. Peloton further objects to [various words and phrases] as overly broad, unduly burdensome and ambiguous. Peloton further objects to this Interrogatory because it requests information in the possession, custody, or control of Flexport. Peloton further objects to the extent this Interrogatory seeks information protected from disclosure by the attorney-client privilege and the work-product doctrine, or other protections from disclosure. Peloton further objects to the extent that this Interrogatory seeks an unduly burdensome compilation, summary or analysis of documents or information.

Ex. B to Flexport's Motion to Compel at 8 – 9, 11. Despite this comprehensive array of objections, Peloton further responds that it will produce "relevant, non-privileged documents in its possession, custody, or control..." *Id.*

Peloton maintains that it has provided the documents that are responsive to the above interrogatories. Flexport contends that while Peloton may have produced documents, it has failed to indicate what documents are responsive to each of the above interrogatories. Peloton's objections regarding Interrogatories Nos. 12-15 and 18 are so sweeping as to be meaningless, and it must respond to them to the extent it has non-privileged documents or information. However, Peloton is not required to compile an analysis of responsive documents.

The Memorandum Order instructed Peloton to supplement its responses to Flexport's interrogatories "with references the Bates numbers for documents responsive to the interrogatories..." Memorandum Order at 2. In the April 2025 JSR, Flexport maintains that Peloton has not yet provided the supplemental responses. To the extent that the supplemental responses have not yet been provided, Peloton is **ORDERED** to respond to Interrogatories Nos. 12, 13, 14, 15, and 18, and provide specific Bates number references to the documents that it maintains are responsive to each of the interrogatories, by May 20, 2025.

Interrogatory No. 24 asks for the last known contact information for a list of personnel if they are "not currently employed by Peloton..." Ex. B to Flexport's Motion to Compel at 13-14. Peloton responds with some of the same objections listed above, including that it is overly broad, burdensome, harassing, protected from disclosure due to attorney-client privilege and work-product doctrine, "or other protections from disclosure." *Id.* Peloton further responds that all but two of the individuals listed are no longer employed by Peloton, but it does not provide their contact information. Neither party cites to any authority for their position that Flexport is entitled to some or all the information or that it is overly broad, burdensome, harassing, or protected from disclosure. Flexport's Motion to Compel makes no argument regarding this specific interrogatory, and in Exhibit E attached to the Motion to Compel, Flexport's response to Peloton's failure to provide contact information for the former employees is simply: "How is this privileged?" Ex. E to Flexport's Motion to Compel at 9 (unnumbered).

Without more explanation from Flexport as to the relevance of the 14 former employees to a claim or defense in this litigation, the undersigned will not compel Peloton to provide their addresses and telephone numbers. FRCP 26(b)(1) (any party "may obtain discovery regarding any matter, not privileged, which is relevant to the subject matter involved in the pending action, whether it relates to the claim or defense of the party seeking discovery or to the claim or defense

of any other party.....”). Flexport took the deposition of one of the former employees named in Interrogatory No. 24 and attached portions of it to its Response to Complainant’s Third Motion for Modification of the Scheduling Order. It is unknown if Flexport obtained the contact information of the former employee from the initial disclosures, Peloton, or some other manner. Presumably it was established that the former employee had knowledge relevant to the litigation. *See* Excerpts from Dep. of D.B. There is no information provided by either party as to whether any of the other former employees also has knowledge relevant to this proceeding.

## **B. Motion to Dismiss and for Sanctions**

On April 25, 2025, Respondent filed a Motion to Dismiss and for Sanctions (“2<sup>nd</sup> MTD”). Respondent brings this motion 23 days before the end of discovery.<sup>1</sup> This is the third dispositive motion Flexport has filed in this proceeding, and the second motion to dismiss. On May 12, 2025, Peloton filed an opposition to the motion to dismiss and for sanctions (“Opposition to MTD”), as well as exhibits labeled 1-7, and a Third Motion for Confidential Treatment. If Flexport intends to file a reply, it will be due on May 19, 2025.

After filing the 2<sup>nd</sup> MTD, Flexport filed a motion to modify and extend the scheduling order to allow it to take an expert deposition after the current deadline of May 19, 2025, and to extend briefing. The decision regarding the motion to extend is discussed below, but it is noted that neither the current schedule nor the modified schedule allow time to submit dispositive orders near the end of discovery.

Dispositive motions filed shortly before briefing begins, as Flexport has done here, are disfavored. *Aeneas Exporting LLC v. Honeybee International Inc., and All America Shipping*, 2022 WL 2399909, at \*1 (ALJ June 29, 2022) (Scheduling Order) (“Moreover, dispositive motions at the close of discovery are disfavored as it is more efficient to move to briefing where factual disputes can be resolved.”). The schedule does not allow for filing dispositive motions at the end of discovery, and administrative law judges have routinely denied scheduling order proposals that request dates to do so. *Port Elizabeth Terminal & Warehouse Corp. v. The Port Authority of New York and New Jersey*, 2018 WL 2683806, at \*1 (ALJ May 31, 2018) (Revised Scheduling Order) (Complainant requests a deadline for dispositive motions and Respondent requests a deadline for motions for summary decision. Dispositive motions such as motions for summary decision are disfavored at the conclusion of a proceeding as they do not create any efficiencies for the parties or the agency. Accordingly, the parties should proceed to briefing on the merits.”).

In the case *sub judice*, there is no efficiency to be realized by deciding a third dispositive motion shortly before briefing begins. Accordingly, Respondents second motion to dismiss is **DEFERRED** and will be decided in the initial decision.

Peloton filed a motion for confidential treatment for portions of two exhibits with their Opposition to MTD, citing as good cause that they contain personally identifiable information and commercial information, and in addition, were “designated as confidential by Flexport.” Third Motion for Confidentiality at 2. Agreements between the parties during discovery do not

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<sup>1</sup> At the time Respondent filed the 2<sup>nd</sup> MTD, it had not filed the motion seeking an extension of the scheduling order and only 23 days of discovery remained.

guarantee that materials offered into evidence for use in the proceeding will receive confidential treatment. The Initial Order states that when materials are used in the proceeding, good cause to protect them must be shown. Specifically, a motion for confidential treatment “must identify each item for which protection is sought and show good cause by demonstrating that the information is **a trade secret or other confidential research, development, or commercial information.**” 46 C.F.R. § 502.141(j)(1) (emphasis added). And, since briefing will soon begin, it is worthwhile to reiterate that, “[e]ntire exhibits should not be excluded, only those pages containing confidential material.” Initial Order at 6 (emphasis added). Further, only portions of depositions containing confidential information may be designated as confidential. “Requests for confidential treatment of entire depositions should not be made and may be summarily rejected.” *Id.*

One of the reasons Complainant gives for justifying confidential treatment of portions of Ex. Nos. 1 and 2 is that they contain personally identifiable information. As set forth in the Initial Order, which cites to Commission Rule 13, personally identifiable information includes social security numbers, birth dates, and financial account numbers, not employee names or their employee email addresses, corporate email addresses, corporate names, or corporate addresses. Complainant has provided no case authority that holds otherwise. Similarly, in looking at the redacted portions of the two exhibits, it is not clear what is considered “commercial” information warranting confidentiality. Accordingly, Exhibits No. 1 and 2 do not contain confidential information and the motion for confidentiality is **DENIED**.

### **C. Respondent’s First Motion for Modification of the Scheduling Order**

On May 8, 2025, Respondent filed its First Motion for Modification of the Scheduling Order (“EOT”) and requested expedited relief. Respondent moves to extend the deadline for concluding expert depositions by two weeks from May 19, 2025, to June 4, 2025, due to unstated scheduling conflicts. Respondent proposes taking one expert deposition on May 28 or May 29, 2025; it does not indicate whether it has proposed this date to Peloton, or if Peloton has agreed to the date. It is unclear why June 4, 2025, is proposed if that single deposition is held on either date identified. In addition, Flexport seeks a 30-day extension of the briefing dates due to a conflict with an unspecified trial date in an unrelated matter in July 2025. Flexport’s counsel met and conferred with Peloton’s counsel regarding the motion, and Peloton “takes no position” regarding the extension. EOT at 3.<sup>2</sup>

While Respondent requests to extend the time by which it can depose one witness, it does not explain why it did not depose the witness within the schedule, which would be helpful in assessing good cause. Flexport also offers little explanation regarding the scheduling conflicts it has which cause it to be unable to depose within the current schedule. Moreover, Flexport offers no explanation for why it requires an additional 6-7 days after the deposition. While the time will be extended to depose the one expert witness, no further extensions of discovery will be granted, and discovery will close on **June 2, 2025**.

Flexport also seeks a 30-day extension of briefing due to a conflict with a trial in an unrelated matter. Respondent fails to state when the trial is scheduled but does say that it

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<sup>2</sup> The parties have been put on notice that filings that do not include page numbers will be rejected. Respondent is alerted that this motion fails to include page numbers, and while it has been accepted, the next filing to omit page numbers will be rejected.

conflicts with the current due date of its opposition brief on July 14, 2025. Since Peloton does not object or offer any opposition to the motion for an extension, it is granted as revised below.

Good cause having been stated,<sup>3</sup> the parties are **ORDERED** to follow the below extended schedule:

|                 |                                                                                                                |
|-----------------|----------------------------------------------------------------------------------------------------------------|
| June 2, 2025    | Expert Depositions Completed                                                                                   |
| June 2, 2025    | Completion of all Discovery                                                                                    |
| July 14, 2025   | Complainant's Initial Brief, Proposed Findings of Fact, and Appendix                                           |
| August 11, 2025 | Respondent's Opposition Brief, Responses to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix |
| August 25, 2025 | Complainant's Reply Brief and Responses to Proposed Findings of Fact                                           |

The parties are instructed to review the Initial Order and Scheduling Order which provide requirements for submitting briefing. Failure to follow the requirements may result in an Order to Correct Filings, adding additional time and expense to the proceeding.

  
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Linda S. Harris Crovella  
Administrative Law Judge

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<sup>3</sup> In its motion, Respondent requested extending briefs by 30-days, but in keeping with typical scheduling practices, the modified due dates are four weeks after those established in the Second Amended Scheduling Order for the Initial and Opposition briefs and two weeks for the Reply.